

Minister of Health v Treatment Action Campaign (No 2)

MINISTER OF HEALTH AND OTHERS v TREATMENT ACTION CAMPAIGN AND OTHERS (NO 2) 2002 (5) SA 721 (CC)

Holding

The government's policy restricting nevirapine to pilot sites was unreasonable and breached s 27(1)(a) and (2) of the Constitution (right of access to health care services). The Court ordered government to permit and facilitate the use of nevirapine where medically indicated and to roll out a comprehensive programme.

Significance

Demonstrates justiciability of socio-economic rights and the Court's willingness to craft structural remedies while respecting separation of powers.

NOTE: Educational case summary.

— End of curated extract. Verify official text before reliance. —